

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN EGYPT

INTRODUCTION & FRAMEWORK

Egypt builds at enormous scale and speed — desert cities, Red Sea and Mediterranean resorts, roads and bridges through established neighbourhoods, industrial zones, power plants, quarries, and vast projects on and around the Nile. Much of it is driven from the top, and much is genuinely transformative for the people where it lands: homes demolished, narrow-strip Nile farmland built over, islands and lakeshores cleared, coasts hardened, air and water degraded. When people ask whether anything can be done, the honest answer is: sometimes, and more often than they expect — but only if they use the specific machinery the law provides, and understand where it stops. There is no single landmark community victory to point to, and the biggest state projects are the hardest to touch. But the machinery is real.

A community in Egypt facing a harmful project works with real, if constrained, tools, and they are documentary and legal above all. The foundation is **Egypt's environmental law (Law 4/1994) and its Article 19 environmental-impact requirement**: every project, public or private, must submit a study of its impact to the licensing body before work begins — a real gate, and an assessment done after a facility is built does not satisfy the law and can expose it to closure. Arguing that a project has been **screened into too low an assessment category** — A, B, or C — is one of the most effective objections available, because the category determines the scrutiny and disclosure it receives. Decisions can be taken to the **Permanent Appeals Committee** and, crucially, to the **Administrative Court of the State Council, the Majlis al-Dawla**, Egypt's dedicated administrative judiciary, which reviews the legality of government decisions and has a genuine record of annulling them. And **Article 103** gives any concerned citizen the right to report a violation to the authorities, including the prosecution. But these tools have grave limits, and this guide states them plainly. Egypt's civic space is heavily constrained: the associations law, Law 149 of 2019, places independent civil society under close state and security supervision and makes foreign funding difficult, and assembly is tightly regulated — so street mobilisation can be dangerous, and the documentary and legal routes matter far more here. Many of the biggest projects are built by the state or the armed forces' economic arms, bodies hard to reach in court. And the courts, genuinely independent in many administrative matters, operate within those limits. So this is not a fight won by confrontation, and winning rarely means the outright cancellation of a flagship state project — more often a private or investor project relocated off a sensitive site, a coastal or Nile-side scheme redesigned, an assessment redone properly after being exposed as inadequate, conditions and monitoring written into the approval, a project delayed, a demolition paused or compensated, a quarry or factory refused or moved. So aim for that — a project made smaller, better-sited, better-mitigated, or slower — through the documentary and legal machinery, and protecting everyone involved.

The Whole Strategy in One Idea

You do not win here by confrontation, which is constrained and can be dangerous, and rarely by cancelling a flagship state project. You win by using the machinery: catch the project before it passes the Article 19 gate, argue it into a higher assessment category, expose an inadequate or after-the-fact study, take the decision to the Administrative Court that genuinely annuls illegal government decisions, and report violations under Article 103 — all documentary and legal, and protecting everyone involved.

Be Honest About Which Fight You're In

Egypt is a constrained setting, and honesty about that is the first discipline. This is not a fight you win by street mobilisation, which is tightly regulated and can be dangerous, nor usually by defeating a flagship state project outright. It is a documentary and legal effort, whose realistic prize is a project relocated, redesigned, redone, conditioned, delayed, or refused — most achievable against private and investor-driven projects, hardest against the state's own. Aim at the winnable, work the legal machinery, and protect everyone involved.

HOW THE SYSTEM WORKS

Who Actually Decides

The system is run by the **Egyptian Environmental Affairs Agency (EEAA)**, under the Ministry of Environment — the national regulator that sets the rules, screens projects into tiers, and reviews the impact studies. Above and around it sit the **licensing bodies** that cannot lawfully approve a project without the Article 19 study, the **Permanent Appeals Committee** that hears objections, and the **Administrative Court of the State Council** that reviews the legality of it all. Many big projects are driven by the state, governorates, or the armed forces' economic arms. Map who decides — and who can be reached in court — before spending a week on it.

How a Project Moves — and Where You Jump In

A project must submit its Article 19 environmental-impact study to the licensing body *before* work begins; the EEAA screens it into Category A, B, or C by likely severity, and reviews the study accordingly. The moment before it passes that gate is when your community has the most power. You enter by contesting the screening category, exposing an inadequate or after-the-fact study, and — if the decision stands — taking it to the Permanent Appeals Committee and then the Administrative Court. Article 103 lets you report a violation at any point.

Follow the Money and the Permissions

Follow the permissions: whether the Article 19 study was done, done before work began, and screened into the right category. Follow the builder: whether it is a private investor (more reachable) or the state or military (harder). Follow the site: the Nile farmland, the island, the coast, the neighbourhood the project touches. The leverage lies in the assessment gate, the category, the appeal and the court, and Article 103.

Who's Supposed to Be Watching

The overseers are the EEAA and the Ministry of Environment, the licensing bodies bound by the assessment requirement, the Permanent Appeals Committee, and — genuinely independent in many administrative matters — the Administrative Court of the State Council. Egypt's own law, through Article 103, also makes any concerned citizen a watcher, with the right to report violations to the authorities and the prosecution. These are the institutions a documentary and legal case engages.

QUICK REFERENCE: SUCCESS RATES

Opposition in Egypt is constrained but not pointless, and honesty requires stating both. The single most decisive move is **catching the project before it passes the Article 19 gate and attacking the assessment** — its absence, its lateness, or its screening into too low a category — because an assessment done after a facility is built does not satisfy the law and can expose it to closure, and the category

determines all the scrutiny that follows. The assessment gate is the sharpest tool; the Administrative Court the distinctive one, with a real record of annulling government decisions; Article 103 the citizen's own handle. What the tools deliver, most achievably against private and investor projects, is a project relocated, redesigned, redone, conditioned, delayed, or refused — not usually the cancellation of a flagship state project. The documentary and legal routes work; the street is dangerous.

STEP 1: TARGET IDENTIFICATION

Ask five questions. **What is the harm?** — the demolition, the Nile farmland lost, the coast hardened, the pollution. **Who builds it?** — a private investor (reachable) or the state or military (harder). **Where is it in the process?** — before or after the Article 19 gate. **What is wrong with the assessment?** — missing, late, or screened into too low a category. **Which legal handle fits?** — the assessment challenge, the category objection, the appeal, the court, or Article 103. Pick the project where the assessment is weakest and the builder most reachable — usually a private or investor-driven scheme caught before the gate.

STEP 2: DOCUMENTATION

Build the case in layers, documentary above all. **Layer one: baseline conditions** — the site as it is: the farmland, the water, the neighbourhood, the heritage, the air, recorded before the project changes them. **Layer two: the project and its process** — what is planned, whether an Article 19 study was done, when, and into what category it was screened, and where that falls short of the law. **Layer three: the human and institutional impact** — the homes, livelihoods, and community affected, and who decided what. A case built on the baseline, the assessment's failures, and the documented impact is one the EEAA, the appeals committee, and the Administrative Court must engage — and it is safer, and far more effective here, than the street.

WHAT TO GATHER, AND WHERE TO FIND IT

Gather the **baseline record**: photographs, maps, and measurements of the site as it is — the farmland, the water, the air, the heritage, the homes. Gather the **process record**: the Article 19 study (or its absence), the screening category, the licensing decisions, and the timeline showing whether work began before assessment. Gather the **impact record**: the demolitions, evictions, livelihoods, and pollution. Gather the **legal record**: the provisions of Law 4/1994 and its regulations, the appeal route, and Article 103. Much of this is obtainable through the official record, the licensing bodies, and expert help — and the documentary route is the safe one.

STEP 3: BUILDING LOCAL OPPOSITION

In a constrained civic space, organising must be careful and documentary rather than confrontational. Build quietly around the **directly affected residents, farmers, and property owners**, whose legal standing and documented harm are the foundation; the **technical and legal experts** who can prepare the assessment challenge and the court case; and any **professional or syndicate bodies** with a legitimate stake. Keep the work within the documentary and legal frame; avoid street mobilisation, which is tightly regulated and can be dangerous; involve no one who could be endangered; and let the affected people's own standing carry the case.

STEP 4: LEGAL CHALLENGES

Set expectations honestly: the legal machinery is real and genuinely usable, most of all against private and investor projects, and it is the strongest and safest route here.

The Article 19 Assessment Gate

The foundation is **Article 19 of Law 4/1994**: every project must submit an environmental-impact study to the licensing body before work begins. An assessment that is missing, done after the fact, or inadequate does not satisfy the law and can expose the project to closure. Attacking the assessment — its absence, its lateness, its quality — is the single most powerful legal move.

The Category Objection and the Appeal

Arguing that a project was **screened into too low an assessment category** (A, B, or C) is one of the most effective objections available, because the category governs the scrutiny and disclosure. An adverse decision goes first to the **Permanent Appeals Committee**, which must decide within a set period.

The Administrative Court and Article 103

The distinctive lever is the **Administrative Court of the State Council, the Majlis al-Dawla**, which reviews the legality of government decisions and has a genuine record of annulling them — a real, independent judicial check. And **Article 103** gives any citizen the right to report a violation to the authorities and the prosecution. Pursued together — the assessment gate, the category objection and appeal, and the court and Article 103 — these levers can relocate, redesign, redo, condition, delay, or refuse a project, safely and lawfully.

TURNING YOUR EVIDENCE INTO ARGUMENTS

Tailor the case to each body. **For the EEAA**: here is a project with no proper Article 19 study, or one screened into too low a category. **For the licensing body**: here is a project you cannot lawfully approve without a valid assessment. **For the Permanent Appeals Committee**: here is the decision that misapplied the law. **For the Administrative Court**: here is an illegal government decision to annul, with the documented record. **For the prosecution, under Article 103**: here is a reported violation. **The golden rule**: keep everything documentary and legal, ground every argument in the assessment and the law, target the reachable projects, and protect everyone involved — the machinery, not the street, is the tool here.

STEP 5: MEDIA STRATEGY

Media must be handled with great care in a constrained state. Favour the **documentary and legal record** over public mobilisation, and where attention is sought, frame it factually around the law: an assessment skipped, a category misapplied, a heritage or farmland at risk — never as a challenge to the state. Egyptian and international coverage can support a legal case, but assembly and open protest are tightly regulated and can be dangerous. A few cautions govern everything: keep it factual and law-grounded; never frame it as opposition to the state; protect everyone involved; and let the assessment failures and the court record carry the weight.

EMAILS & LETTERS

Keep every message factual, law-grounded, and protective of those involved.

8A — To the EEAA: identify the project and set out the missing, late, or inadequate Article 19 study, and request proper assessment.

8B — On the category: argue that the project was screened into too low a category and request the fuller assessment the law requires.

8C — To the licensing body: note that it cannot lawfully approve the project without a valid assessment.

8D — To the Permanent Appeals Committee: set out the decision's misapplication of the law and request review.

8E — To the Administrative Court (through counsel): establish the illegal government decision and seek its annulment.

8F — Under Article 103, to the authorities or prosecution: report the documented violation.

8G — To a technical or legal expert: request the assessment critique or the court filing.

8H — To the affected residents: set out the documented harm and the legal route, and organise the standing quietly.

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

The first 48 hours: find out whether an Article 19 study was done, when, and into what category the project was screened; document the site as it is now; write the one-page assessment challenge. **The fastest-moving levers:** the assessment gate, the category objection, and Article 103 reporting. **Emergency action:** if work has begun without a valid prior assessment, that is the strongest handle — document it and raise it with the EEAA and, through counsel, the court. Throughout, keep it documentary and legal, avoid the street, and protect everyone.

WHEN THE SYSTEM IS TILTED

The field here is tilted by a constrained civic space, state and military builders, and finance that leans toward "yes." Recognise it, and lean on the levers the tilt cannot easily override — the Article 19 assessment gate, the category rules, the Administrative Court that genuinely annuls illegal decisions, and Article 103. Target the reachable projects — private and investor-driven — where the machinery bites hardest. And accept, honestly, that a flagship state project is rarely cancelled outright, while a private scheme can be relocated, redesigned, redone, conditioned, delayed, or refused. The documentary and legal routes work where the street cannot.

WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED

Distinguish the ordinary tilt from capture — an assessment waved through, a category downgraded to hide impact, a licence granted against the law to benefit an insider. Where capture appears, respond only through the **documentary and legal channels:** the assessment record, the Administrative Court, and Article 103 reporting to the authorities and prosecution. Never through open confrontation. **On safety:** Egypt's civic space is heavily constrained, independent civil society is under close state supervision, and

assembly and protest are tightly regulated and can be dangerous. So keep the work documentary and legal; avoid street mobilisation; protect everyone involved and any advocate whose position could be jeopardised; frame everything factually around the law, never as opposition to the state. Safety and the legal frame are the first rules.

INTEGRATION & TIMELINE

The steps run in parallel, documentary and legal throughout. The baseline and process documentation feed the assessment challenge, the category objection, and the court case at once; the affected residents' standing anchors it all; any media stays factual and law-grounded. A rough timeline: **weeks one to four**, document the site and the assessment's failures, and file with the EEAA; **months two to six**, pursue the category objection, the appeal, and — through counsel — the Administrative Court, and report under Article 103 where warranted; **beyond**, secure the relocation, redesign, redone assessment, or conditions, and hold them. The core discipline: documentary and legal, targeted at the reachable, and absolute in protecting everyone.

FINAL ASSESSMENT

Egypt is a constrained ground, and this guide does not pretend otherwise. It does not claim that street mobilisation is safe, or that a flagship state project can usually be stopped outright, or that the civic space is open — none of that is true. What it claims is precise and real: that Egypt's own environmental law requires an Article 19 impact study before any project begins, and that an assessment missing, late, or inadequate can expose a project to closure; that arguing a project into too low a category is one of the most effective objections available; that decisions can be taken to a Permanent Appeals Committee and then to an Administrative Court with a genuine record of annulling illegal government decisions; and that any citizen may report a violation under Article 103. The tools are documentary and legal, most achievable against private and investor projects, and the realistic prize is a project relocated, redesigned, redone, conditioned, delayed, or refused — smaller, better-sited, better-mitigated, or slower. In a constrained state with a genuinely independent administrative judiciary and a real assessment law, that documentary, legal, careful work — not the dangerous street — is not a lesser ambition. It is the responsible and effective one.